

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 12/03/2025

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Law & Motion

1. 9:00 AM CASE NUMBER: C23-00520
CASE NAME: JANE DOE VS. PROSPECT SIERRA SCHOOL
*HEARING ON MINOR'S COMPROMISE RE: JANE DOE

FILED BY: DOE, JANE

TENTATIVE RULING:

Summary

Petitioner Rachel Calahong-Monzon's Petition for Approval of Compromise of Minor Jane Doe ("Minor"), filed on August 15, 2025, is **granted**, as set forth below. No appearance is required at the hearing on December 3, 2025.

Background

On August 15, 2025, Petitioner Rachel Calahong-Monzon's, parent and guardian *ad litem* for her

daughter, Jane Doe (DOB 7/21/2009), filed this Petition through counsel Seth Rosenberg, Esq., to compromise the claim that Minor had against Prospect Sierra School related to an incident that occurred on December 13, 2021 in El Cerrito, CA. In that incident, Minor sustained injuries after being assaulted by a student. Petitioner represents that Minor sustained emotional distress and received treatment. She has not fully recovered. Minor and Petitioner entered into a settlement agreement disposing of this litigation.

Pursuant to the settlement agreement, Prospect Sierra offered the amount of \$115,000, of which \$55,955 is to be invested into a single premium deferred annuity that will yield future distributions to Minor in the amount of \$80,960. The deduction of \$59,044.42 represents a deduction from the settlement used to satisfy expenses and to pay for attorney's fees incurred.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on August 15, 2025. Counsel is directed to take all necessary steps to effectuate the settlement agreement. No appearance is required on December 3, 2025.

2. 9:00 AM CASE NUMBER: C23-02219

CASE NAME: LORENA FLORES VS. LUIS FERNANDO ESPINOZA

***HEARING ON MINOR'S COMPROMISE RE: KONNOR BENJAMIN AFZAL KHAN**

FILED BY: FLORES, LORENA VANESSA

TENTATIVE RULING:

Summary

Petitioner Nataly Duran ("Petitioner") Petition for Approval of Compromise of Connor Benjamin Afzal Khan ("Khan"), an adult person with disability, filed on August 5, 2025, is **granted**, as set forth below. No appearance is required at the hearing on December 3, 2025.

Background

On August 5, 2025, Petitioner, who is guardian *ad litem* for Khan, filed the Petition through Plaintiff's counsel Steven J. Brady, Esq., to compromise the claim that Khan had against Anna Marie Aparicio and Luis Fernando Garia Espinoza, related to an accident that occurred on September 10, 2021 in Antioch, CA. In that accident, Khan lost his father, Eqbal Afzal Khan. Mr. Khan suffered the loss of love, companionship, comfort, care, assistance, protection, affection, society, moral support, advice and guidance of his father. The Defendants collectively offered settlement in the amount of \$50,000 and the insurance carrier of Khan's father offered \$450,000 in uninsured motorist policy benefits.

Plaintiff/Claimant, Lorena Vanessa Flores, the widow of Konnor Benjamin Afzal Khan's father will receive 50% of the \$500,000.00 of settlement proceeds. Decedent, Eqbal Afzal Khan's three biological children, including Khan, will each receive 16.66% of the settlement proceeds or \$83,333.33 less attorney fees and costs.

Of the \$83,333 to be paid to Khan, \$55,573.50 be placed into a special needs trust account authorized

by Cal. Probate Code § 3604 for his benefit. The deduction of \$ 27,759.83 represents a negotiated deduction from the settlement used to satisfy liens for medical expenses and to pay for attorney's fees incurred. Petitioner's counsel prepared a proposed order to deposit funds into special trust account.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of this Claim and the Proposed Order to Deposit Funds into a Special Needs Trust lodged on August 5, 2025. No appearance is required on December 3, 2025.

3. 9:00 AM CASE NUMBER: C23-02347
CASE NAME: KRISTIN CASEY VS. KRIS HANSEN
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: CASEY, KRISTIN
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Kristin Casey's motion for leave to file a FAC pursuant to CRC 3.1324. The Motion relates to Plaintiff adding a cause of action pursuant to California Labor Code § 1102.5 for whistleblower retaliation allegedly committed by Defendant D.R. HORTON, INC.

For the reasons explained below, **Plaintiff's motion to for leave to file a FAC is granted.**

Factual Background

This is an employment related case in which Plaintiff KRISTIN CASEY alleges sexual harassment against her former employer, DEFENDANT D.R. HORTON, INC. ("DRH"). Plaintiff was a real estate agent selling homes for DRH where Plaintiff alleges, she repeatedly endured vulgar and threatening incidents of sexual harassment. (Complaint ¶ 1.) Plaintiff worked for Defendant D.R. Horton from June of 2018 to September 2023. (Casey Decl. ¶ 2.)

Procedural Background

Plaintiff filed her complaint on September 18, 2023. (Teti Decl., ¶ 2.) However, litigation in the case was halted on April 12, 2024, following the Court's grant of Defendants' motion to compel arbitration. (Id., ¶ 8.) Upon petitioning the Court of Appeal, the decision to grant Plaintiff's petition for writ of mandate reversing the arbitration order was not delivered until February 3, 2025, and the Court of Appeal's remittitur, returning jurisdiction to this Court, was not docketed until May 20, 2025. (Id., ¶¶ 10–11.) No demurrers have been filed, and this Motion is necessary for Plaintiff to amend her Complaint. (See id., ¶ 14; Code Civ. Proc. § 473.)

Plaintiff has continually developed the facts in this case through the discovery process, which has brought to light the connections giving rise to the retaliation claim under Labor Code § 1102.5. (Teti Decl., ¶ 14.) Plaintiff alleges through her attorney's declaration, that newly discovered information

justifying the proposed amendment only came to light during the April 29, 2025, deposition of Kris Hansen, as well as via Defendant's document production. Plaintiff posits that Mr. Hansen's testimony, in conjunction with the recent document production, tends to prove that Hansen's placement with Plaintiff was itself a retaliatory act for Plaintiff's resistance to D.R. HORTON's practice of securing \$10,000 deposits from prospective home buyers towards the home purchase, despite knowing many customers would later be denied mortgage approval, resulting in the forfeiture of their deposits to D.R. HORTON. (Id., ¶ 15.)

Legal Standard for Granting Leave to Amend for a Complaint

Under California Code of Civil Procedure 473(a), courts liberally allow amendments to ensure that cases are decided on their merits. It is well-established California law that leave to amend is to be granted liberally, to accomplish substantial justice for both parties. (CCP § 473(a); *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-89.) Indeed, "it is a rare case in which a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case." (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) Under CCP 473(a) and relevant case law, courts are instructed to allow amendments liberally unless prejudice can be clearly demonstrated. (*Nestle v. City of Santa Monica* (1972) Cal.3d 920, 939.)

It is a well-known policy of the law to permit amendments of pleadings liberally in order that litigation may be tried on its merits. (*Cardenas v. Ellston* (1968) 259 Cal App. 2d 232.) Courts are liberal in allowing amendments of complaints in order that, if possible, no litigant will be deprived of his day in court because of mere technicalities of pleading. (*Barr v. Carroll* (1954) 128 Cal. App. 2d 23.)

Analysis

Plaintiff's Failure to Meet and Confer is Not Fatal

Defendant argues that Plaintiff's failure to meet and confer is a sufficient basis to deny Plaintiff's motion for leave to file a FAC. (Oppo at p. 4: 13-14.) However, when examining the actual language of the local rules, "[t]he Court urges counsel to meet and confer on disputed issues before motions are filed." (LR 3.4(d).) Although the rules make it clear that the Court strongly prefers parties to meet and confer before the filing of motions, the word "urges" does not have the same mandatory meaning as "shall" or "must."

Plaintiff Identified the 2025 Deposition of Kris Hansen as the New Evidence for Leave to Amend

Plaintiff posits that newly discovered information justifying the proposed amendment only came to light during the April 29, 2025, deposition of Kris Hansen, as well as via Defendant's document production. Hansen's testimony, in conjunction with the recent document production, made clear that Hansen's placement with Plaintiff was itself a retaliatory act for Plaintiff's resistance to D.R. HORTON's practice of securing \$10,000 deposits from prospective home buyers towards the home purchase, despite knowing many customers would later be denied mortgage approval, resulting in the forfeiture of their deposits to D.R. HORTON. ((Teti Decl., ¶ 15.)

Defendants generally contend that Plaintiff's alleged new information was used in Plaintiff's March 2023 pre-litigation demand. (Oppo at p.5 :5-12.

Plaintiff bellies Defendants' contention. First, the March 2023 pre-litigation demand letter was prepared by Plaintiff's former counsel who did not have the factual benefit of newly produced documents, the deposition of the Defendant Kris Hansen, and the re-interview of the Plaintiff when assessing the matter. (Reply at p.5: 23-26.) Second, Plaintiff argues that nowhere does the March 2023 demand letter state that Ms. Casey opposed the \$10,000 customer deposit payments, that she disclosed information about them, or that she was retaliated against for making such disclosures. Nor does the letter contain any statement connecting Ms. Casey's assignment to work with Defendant Hansen—or any other adverse action—to retaliation for opposing unlawful business practices, which is the gist of the proposed amendment. (Reply at p.6: 1-4.)

Plaintiff Met Their Burden to Amend Their Pleading

Plaintiff has fulfilled all its procedural requirements to amend her Complaint. Plaintiff's motion included a copy of a serially numbered proposed amended complaint and included a list of proposed allegations to be added and deleted. (CRC Rule 3.1324(a); See Teti Decl., Exhs. 1-2; Motion pp. 6-9.) Plaintiff's motion was supported by two of counsel's declarations which specified the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (CRC Rule 3.1324(b); See Macek Decl., ¶¶ 2-9; Teti Decl., ¶¶ 15-16.)

Plaintiff's FAC

Defendants oppose this motion on the grounds that the proposed FAC has claims that are legally defective. Arguments regarding the merits of the claims alleged in the proposed FAC are more properly addressed in a challenge to the FAC after it is filed, whether by demurrer, motion for judgment on the pleadings, or motion for summary judgment. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760-761; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 ["[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."].)

The case has been pending for approximately two years, including an 11-month appeals period. There is no trial date set, there have been no challenges to the pleadings, and discovery is ongoing. There is no prejudice to Defendant by allowing the amendment, as they will have ample opportunity to contest its merits "by appropriate proceedings." (*Kittredge Sports Co.*, supra, 213 Cal.App.3d at 1048.)

Conclusion

As analyzed above, **Plaintiff's motion to for leave to file a FAC is granted.**

4. 9:00 AM CASE NUMBER: C24-01096
CASE NAME: FRANCISCO CORDOVA ALFARO VS. MENLO WESTRIDGE AFFORDABLE PARTNERS, L.P.
***HEARING ON MOTION IN RE: LEAVE TO FILE A FIRST AMENDED COMPLAINT**
FILED BY: CORDOVA ALFARO, FRANCISCO
TENTATIVE RULING:

Plaintiff Francisco Cordova Alfaro's Motion for Leave to File First Amended Complaint, filed on August 14, 2025, is unopposed and is **granted**. Plaintiff's First Amended Complaint, attached as Exhibit A to

Duncan McGee Nefcy, shall be filed and served no later than ten (10) days from the date of this hearing. An answer or reply shall be due no later than thirty (30) days from the date of service. No appearance is required at the hearing on December 3, 2025. The Court will execute the proposed order lodged with the Court on August 20, 2025.

5. 9:00 AM CASE NUMBER: C24-02750

CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT
FILED BY: BJ'S RESTAURANT INC.**

TENTATIVE RULING:

The hearing on Defendant BJ's Restaurant's Demurrer and Motion to Strike is continued, *sua sponte*, to February 18, 2026 at 9:00 a.m. No appearance is required on December 3, 2025.

6. 9:00 AM CASE NUMBER: C24-02750

CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.

**HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: BJ'S RESTAURANT INC.**

TENTATIVE RULING:

The hearing on Defendant BJ's Restaurant's Demurrer and Motion to Strike is continued, *sua sponte*, to February 18, 2026 at 9:00 a.m. No appearance is required on December 3, 2025.

7. 9:00 AM CASE NUMBER: C25-00170

CASE NAME: ANTOINETTE CLARK VS. HAE RHEE

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL RE: GEORGE HOLLAND
FILED BY: CLARK, ANTOINETTE**

TENTATIVE RULING:

On September 16, 2025 Counsel George Holland filed a Motion to be Relieved as Counsel for Plaintiff Antoinette Clark. On November 24, 2025, this motion was withdrawn. The hearing on December 3, 2025 is vacated. No appearance is required.

8. 9:00 AM CASE NUMBER: C25-00261

CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC

***HEARING ON MOTION IN RE: AN ORDER GRANTING HER AUTHORITY TO MAINTAIN THE
SURVIVAL CAUSES OF ACTION ON BEHALF OF ROWENA DAVIS, AN INTERESTED PERSON
FILED BY:**

TENTATIVE RULING:

The Parties are ordered to appear remotely or in person at the hearing on December 3, 2025 at 9:00 a.m.. The Court is unable to locate the moving papers related to this Motion and requires further information.

9. 9:00 AM CASE NUMBER: C25-01917
CASE NAME: ANENDRA SINGH VS. ALAMO HEALTH MANAGEMENT, LLC
*HEARING ON MOTION IN RE: RECONSIDERATION OF ORDER GRANTING PETITIONER'S PETITION
COMPELLING ARBITRATION
FILED BY: ALAMO HEALTH MANAGEMENT, LLC
TENTATIVE RULING:

The motion by respondent Alamo Health Management is **denied** because it does not meet the requirements of Code of Civil Procedure, § 1008, as set forth below.

Background

Petitioner, Anendra Singh, was employed by respondent, Alamo Health Management, LLC. The contract governing petitioner's employment included an arbitration provision. On April 1, 2025, in accordance with the arbitration provisions in the agreement, petitioner submitted a demand for arbitration before the American Arbitration Association ("AAA") and paid the associated \$350 filing fee.

Petitioner served respondent's agent for service, John Ramsbacher, by email on that same day. Two days later, on April 3, counsel for respondent contacted petitioner's counsel, stating they had been provided a copy of the arbitration demand. (Dyer Decl., ¶4.) On April 7, AAA acknowledged receipt as well, providing an invoice and instructing respondent to pay its \$2,100 share of the filing fees by May 7, 2025. (Dyer Decl., Ex. 3.) On the face of the invoice, the following text appeared:

IMPORTANT NOTE: This arbitration is subject to California Code of Civil Procedure 1281.97, and payment must be paid within 30 days of the initial notice or the AAA will close the parties' case. Pursuant to California Code of Civil Procedure 1281.97, the AAA is unable to extend the payment deadline.

AAA sent a reminder on April 30th. (Dyer Decl., Ex. 4.) Respondent nevertheless failed to make payment within 30 days. On May 29, 2025, petitioner advised respondent that it was in breach, citing the statutory basis for entitlement to fees and costs if a petition to compel were necessary. On June 14, petitioner unequivocally stated an intention to file a petition to compel arbitration. On June 30, the AAA closed its file without prejudice. (Dyer Decl., Ex. 7.)

Petitioner filed the present action to compel arbitration on July 2, 2025, after warning counsel that the filing was happening on the same day. (See Dyer Decl., Ex. 5 ["I am going to file...today in Contra Costa Superior Court"].) A hearing date of October 1, 2025 appeared on the face of the petition. (O'Malley Decl., Ex. F.) Accordingly, any opposition to the petition would have been due in mid-September. The petition was supported by a declaration by counsel, also filed on July 2, 2025.

While petitioner inquired as to whether counsel would accept services on behalf of respondent, counsel only said she would "need to ask." (O'Malley Decl., Ex. G.) On July 4th, after the petition had been filed, respondent stated it would "not oppose arbitration." (O'Malley Decl., Ex. H.) On July 8, 2025, counsel for petitioner emailed the petition to counsel for respondent. (Dyer Decl., ¶¶15-16, Ex. 6.) Counsel for respondent had still not unequivocally stated authorization to accept service. Accordingly, petitioner (through a process server) also dropped off the petition and supporting declaration on July 9, 2025 with Danielle Johnson, who was attending respondent's front desk at the time.

In August, the California Supreme Court issued its opinion in *Hohenshelt v. Superior Court*

(2025) 18 Cal.5th 310, hereinafter "*Hohenshelt*," wherein it rejected lower courts' strict application of section 1281.98's deadlines. No opposition to the petition was filed and therefore, no reply was filed either. As a result, the existence of *Hohenshelt* was not brought to the attention of the Court.

As is the practice of this Court, it posted a tentative ruling the court day prior to the hearing, which no one timely contested. The order that followed was therefore the same at the tentative ruling. The Court noted therein respondent's failure to timely oppose the petition, and granted the petition. On October 8, 2025, the Court signed petitioner's proposed order. The order requires respondent to (1) pay the \$2,100 arbitration initiation fee within ten days, (2) pay petitioner's costs and attorneys' fees incurred in the arbitration, regardless of the outcome on the merits, (3) pay sanctions in the amount of petitioner's fees and costs in bringing this petition, (4) staying the present case, and (5) scheduling a case management conference. Respondent's counsel received an email with the Notice of Entry of Order concerning the foregoing on October 9, 2025. (O'Malley Decl., ¶18, Ex. O.)

On October 20, 2025, respondent filed this motion for reconsideration, arguing the new law set forth in *Hohenshelt*, and the new fact that respondent was never properly served with the petition and was thus unaware of the hearing on October 1, 2025. In support of the motion, respondent provides three declarations. John Ramsbacher, defendant's designated agent for process service, states that he received a letter from the American Bar Association on April 7, 2025, stating the amount of arbitration fees, and that they were due by May 7, 2025. Ramsbacher asserts that the "parties" were attempting to settle the case "before paying any fees." Defendant also submits a declaration from Danielle Johnson, a recruiter who had been working at defendant for just a couple of weeks, and temporarily occupying the front desk, when she was given the summons and petition in this case. Defendant's third declaration is from its counsel, Diane Marie O'Malley, who echoes (and provides support for) the statements by Ramsbacher that parties were attempting to settle before paying arbitration fees.

Petitioner opposes the motion, arguing the motion cites the wrong standard for service of process, and that *Hohenshelt* would not make a difference here because petitioner did not seek to enforce a forfeiture of the right to arbitrate by respondent. Instead, petitioner seeks to compel the parties to arbitrate. Further, petitioner argues that respondent's conduct meets any heightened standard that might apply pursuant to *Hohenshelt*. Petitioner does not contest the timeliness of this motion, though it appears the motion was filed on October 20th, which is eleven days after respondent was served with the Notice of Entry of Order.

On reply, respondent does not address the argument concerning the standard for service of process.

Request for Judicial Notice

Respondent requests judicial notice of (1) the "Statement of Information" filed on April 14, 2025, by Alamo Health Management, LLC, with the Secretary of State, and (2) *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310. The petitioner does not oppose the request, which is **granted**.

Legal Standard

Code of Civil Procedure, § 1008 (a) provides as follows:

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon

new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

Discussion

1. Service of Process

Respondent contends it was not properly served. The argument is based on the provisions of Code of Civil Procedure, § 415.20, subdivision (b). Petitioner points out that this is a misreading of the statutory scheme allowing for service of an LLC.

Code of Civil Procedure, § 416.40 (b) allows service on “the person designated as agent for service of process in a statement filed with the Secretary of State [...] or a person authorized by the association to receive service of process.” (See also Corp. Code § 17701.16 [personal service on LLC includes delivery to “any individual designated by [the LLC] as agent”].) It appears undisputed that the person identified for service by respondent is Ramsbacher. (Request for Judicial Notice, Ex. A; Ramsbacher Decl., ¶1.) Ramsbacher does not deny that the address where service was made was his office, and identified on the Statement of Information on file with the Secretary of State.

Code of Civil Procedure, § 415.20 allows substitute service in lieu of personal delivery. Subdivision (a) addresses service upon an agent identified in Code of Civil Procedure, § 416.40, such as Ramsbacher. Contrary to respondent’s arguments, that subdivision does not include any reasonable diligence prerequisite to substitute service. It allows substitute service by leaving a copy of the summons and complaint during usual office hours in his or her office with the person who is apparently in charge thereof, and by thereafter mailing a copy. Only when the place served is a mailing address must the person who receives the documents be “informed of the contents thereof.” While the evidence is in conflict on the question of whether Danielle Johnson was informed of the contents (compare O’Malley Decl., Ex. L [“I informed them of the general nature of the papers”] to Johnson Decl., ¶2 [“He did not tell me what the documents were”]), this detail appears to be irrelevant.

The Court does not find that respondent was improperly served. Accordingly, the contention that respondent was improperly served does not constitute a basis for reconsideration.

2. New Law

Any opposition to the petition was due in mid-September. The California Supreme Court’s opinion in *Hohenshelt* was issued in August. Any opposition that was based on *Hohenshelt* could have been provided at the time the opposition was due.

10. 9:00 AM CASE NUMBER: MS25-0791

CASE NAME: MICHELE KARAKAS, AS CO-TRUSTEE OF THE THERESA H. CALLEJAS REVOCABLE LIVING TRUST VS. VICKI RUDD

*HEARING ON MOTION IN RE: TO STAY COMPLAINT

FILED BY:

TENTATIVE RULING:

Summary

Defendant Vicki Rudd's ("Defendant") Motion to Stay Complaint for Unlawful Detainer in this case filed November 3, 2025 is **denied** as set forth herein.

Background

This case is an unlawful detainer case where Plaintiff Michelle Karakas, who is co-trustee of Theresa A. Callejas Living Trust, served a sixty-day (60) notice of termination under the Ellis Act, California Government Code section 7060, et. seq., and California Civil Code section 1946, et. seq.. Theresa Callejas is Plaintiff's 90-year-old grandmother. Plaintiff filed a Motion for Summary Judgment on the unlawful detainer action, which was granted on November 21, 2025 after a full hearing on the merits. The Court granted summary judgment as it found no triable issues of material fact and issued judgment on behalf of Plaintiff. Plaintiff sought to take this housing unit off the market so she can sell it to provide funds to take care of Ms. Callejas. The Court granted possession of 70 Belinda Drive, Pleasant Hill, CA ("Subject Property") to Plaintiff.

On November 3, 2025, before the hearing on the Motion for Summary Judgment, Defendant Vicki Rudd filed this Motion to Stay the Complaint for Unlawful Detainer in this case on the grounds that this case is related to the action filed in this court, captioned *Vicki Rudd v. Theresa Callejas*, Case No. C25-00609. Defendant requested that this court stay this matter and also filed a motion to consolidate both cases so that the issues may be decided together under the doctrine of exclusive concurrent jurisdiction under Cal. Code of Civ. Proc. §128(a)(3). Defendant contends that this action should be stayed and consolidated because there is another action pending between the same parties on the same cause of action and the complaint alleges facts that overlap with Defendant civil case complaint concerning the Subject Property on the same set of facts and causes of action such as the lack of repairs, rent increases, pet policies, and penalties.

Defendant Vicki Rudd also filed a Motion to Consolidate Case No. C25-00609 with this unlawful detainer case. That motion in that case is scheduled to be heard on March 4, 2026 at 9:00 a.m.

Analyses

The Court granted summary judgment on this unlawful detainer case on November 21, 2025, and granted possession of the Subject Property to Plaintiff in its order filed on the same date. Since the unlawful detainer case is adjudicated in favor of Plaintiff, this motion is **moot** and is therefore **denied**.

Ruling

1. Defendant's Motion for Stay in this case, Case No. MS25-0791, is **denied**.
2. Plaintiff Vicki Rudd's Motion to Consolidate Case No. C25-00609, which is scheduled for hearing on March 4, 2026, is **moot**, as Summary Judgment has already been granted in favor

of Michele Karakas. The hearing in Case No. C25-00609 scheduled for March 4, 2026 at 9:00 a.m. is **vacated**.

3. Plaintiff shall prepare and e-file a proposed order conforming to this tentative ruling no later than five (5) days from the date of this hearing, attaching this tentative ruling as an exhibit.

Clarification to the Order on Summary Judgment Filed on November 21, 2025:

On a related matter, on November 21, 2025, Defendant Vicki Rudd filed an objection to the Court's order on summary judgment in this matter claiming that it is entitled to a statement of decision. Defendant is not entitled to a written statement of decision pursuant to Cal. Rules of Court Rule No. 3.1590(n), which states, "When a trial is completed within one day or in less than eight hours over more than one day, a request for statement of decision must be made before the matter is submitted for decision and the statement of decision may be made orally on the record in the presence of the parties" A plain reading of this rule supports the Court's finding that the Court is not required to prepare a written statement. The rule allows the Court to read its decision orally on the record. However, neither party ordered a court reporter to record this hearing, and as such it was not possible to record this statement on the record. And, moreover, the Court took this matter under submission and issued a written ruling, as the Court wished to consider the reply brief submitted by Plaintiff's Counsel. Accordingly, Defendant's objection and request for a statement of decision is overruled and a written statement of decision is **denied**. Defendant is not entitled to a written statement of decision since this hearing lasted less than eight hours.

To the extent Defendant seeks clarification of the trial court's summary judgment ruling pursuant to Cal. Code of Civ. Proc. § 437c(g), the request is properly before the Court and is **granted**. The following constitutes the Court's clarification.

Cal. Code of Civ. Proc. § 437c(g) provides: "Upon the grant of a motion for summary judgment on the ground that there is no triable issue of material fact, the court shall, by written or oral order, specify the reasons for its determination. The order shall specifically refer to the evidence proffered in support of and, if applicable, in opposition to the motion that indicates no triable issue exists. The court shall also state its reasons for any other determination. The court shall record its determination by court reporter or written order." The Court issued its written ruling on November 21, 2025. **This clarification is appended to that order and incorporated herein.**

Pursuant to section 437c(g), the Court granted summary judgment on the ground that no triable issue of material fact existed as to Plaintiff Karakas' bona fide intent to permanently withdraw the subject property from the rental market. The governing statutory and decisional authority makes clear that a landlord retains the right to recover possession "for any lawful cause." (Civil Code § 1942.5(f).) To recover possession for a good faith, non-retaliatory reason, the landlord must notify the tenant of the asserted grounds and, if the tenant contests those grounds, must prove their truth. (Id., subd. (g).) In *Drouet v. Superior Court* (2003) 31 Cal.4th 583, 587–588, the California Supreme Court concluded that the Ellis Act constitutes a "law pertaining to the hiring of property" under Civil Code § 1942.5, subdivision (d), and that a landlord's withdrawal of a property from the rental market is an exercise of " 'the right to go out of the rental business.' " (*First Presbyterian Church v. City of Berkeley* (1997) 59 Cal.App.4th 1241, 1253.) The Court further held that a landlord's bona fide intent to withdraw the property from the rental market defeats the statutory defense of retaliatory eviction under Civil Code

§ 1942.5, subdivisions (d) and (e).

As in *Drouet*, the instant matter requires harmonizing the Ellis Act with the retaliatory eviction statute. In *Drouet*, after the tenants requested repairs, the landlord served notices withdrawing the units from the rental market, and the tenants asserted retaliatory eviction. (Id. at p. 588.) The Supreme Court held that when a landlord complies with the Ellis Act and initiates an unlawful detainer action, the landlord may overcome a retaliatory-eviction defense by demonstrating a bona fide intent to withdraw the property from the market. If the tenant controverts this intent, the landlord bears the burden of establishing its truth by a preponderance of the evidence. (Id. at pp. 599–600; Civ. Code, former § 1942.5, subd. (e).) On remand, the trial court was directed to determine first whether the landlord’s withdrawal intent was bona fide; if so, the retaliatory-eviction defense fails. (*Drouet*, supra, at p. 600.)

Here, the evidence supporting Plaintiff’s bona fide intent to withdraw the property—which the Court expressly considered—includes the Declarations of Michele Karakas, Rosalinda Callejas, and Counsel Ghantous, along with the attached medical records and physician letters concerning Ms. Callejas’ health. This evidence is undisputed. The trial court found, and the record supports, that Plaintiff met her burden of proof. The Court finds that Plaintiffs have a bona fide intent to take the subject property off the market. Accordingly, the retaliatory-eviction defense is defeated as a matter of law.

Defendant, to create a triable issue, was required to produce more than speculative or credibility-based attacks on Plaintiff’s evidence. (§ 437c, subd. (e).) An issue of fact arises only from a genuine conflict in competent evidence. (*Lewis v. County of Sacramento* (2001) 93 Cal.App.4th 107, 116.) Defendant Rudd, however, presented only bare assertions unsupported by admissible documentary evidence, including uncorroborated allegations of habitability complaints. To the extent Defendant’s position hinges on credibility, the trial court was entitled to—and did—find credible Plaintiffs’ showing that Defendant manufactured proofs of service and falsified notices.

Because Plaintiff presented undisputed evidence establishing a bona fide intent to withdraw the property from the rental market, and because Defendant failed to raise a triable issue of fact, the trial court correctly concluded that Plaintiff satisfied her burden under section 437c. The summary judgment ruling is therefore properly clarified and the order granting summary judgment and possession is confirmed.

11. 9:00 AM CASE NUMBER: N25-1657

CASE NAME: CLAIM OF:ISAIAH CEJA

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Summary

Petitioner Silvia Marison Ceja’s Petition for Approval of Compromise of Minor Isaiah Ceja’s (“Minor”) Claim filed on August 19, 2025, is **granted**, as set forth below. No appearance is required at the hearing of this Motion on December 3, 2025.

Background

On August 19, 2025, Petitioner Silvia Marison Ceja, guardian *ad litem* for Minor, filed the Petition through counsel Robert Buzzard, Esq., to compromise the claim that Minor had against Defendants Ellen and Pacifico Palacay related to an accident that occurred on June 20, 2021 at Contra Loma Regional Park, Antich, CA. In that accident, Minor sustained injuries to the back of his head after he was struck by a bicycle being driven by the one of the defendants during a bicycle-pedestrian accident. Minor has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$30,000, of which \$16,970.52 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$13,029.48 represents a negotiated deduction from the settlement used to satisfy liens for medical expenses and to pay for attorney's fees incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on August 19, 2025. No appearance is required at the hearing on December 3, 2025.

Discovery Law & Motion

12. 9:01 AM CASE NUMBER: C24-01736

CASE NAME: MELINDA HALL VS. FCA US LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE**

FILED BY: HALL, MELINDA OLAIA

TENTATIVE RULING:

Summary

Plaintiff Melinda Olaia Hall's ("Plaintiff") Motion to Compel Further Responses to Request for Production of Documents, Set one, from Defendant FCA LLC ("Defendant" or "FCA") is **granted**.

Background

In this case, Plaintiff alleges that the 2022 Jeep Wrangler vehicle she purchased, which was manufactured and distributed by Defendant, suffers from widespread defects and that Defendant has been unable to repair the vehicle within a reasonable number of attempts. Plaintiff further alleges that Defendant knew that the vehicle suffered from the prevalent defects, but nevertheless refused to repurchase the vehicle before the case was filed—a willful violation of the Song-Beverly Consumer Warranty Act ("Song-Beverly Act").

On July 2, 2025, Plaintiff filed her Motion to Compel Further Responses to Request for Production of Documents, Set One, from Defendant. The Motion was supported by a Notice, Memorandum of Points and Authorities, Declarations of Counsel William Vollbrecht, and a separate statement. The

Requests seek the following general category of documents to FCA's internal investigation and analysis of the Defects plaguing Plaintiff's vehicle and establishing that Defendant previously knew of such Defects but nevertheless refused to repurchase the vehicle. Specifically, Plaintiff seeks further responses to Nos. 16-21, without objections.

This Motion is made pursuant to California Code of Civil Procedure § 2031.310, on the grounds that Defendant has failed to provide adequate responses to Plaintiff's Requests, which seek documents directly relevant to Plaintiff's claims under the Song-Beverly Consumer Warranty Act.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine (9) court days before the hearing is November 18, 2025. Defendant filed and served its opposition and separate statement on November 20, 2025. The opposition is two days late and the Court finds that no timely opposition was filed. Furthermore, no declaration accompanies Defendant's late filed opposition declaring facts that support good cause for Counsel Lindsey Le's unexplained failure to file the opposition timely.

Analyses

Late Opposition Stricken

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) Where responding Counsel makes no attempt to seek leave to file their opposition late, and makes no attempt to demonstrate good cause for having failed to adhere to the applicable deadline, the late opposition may be rejected and stricken. *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held that the responding party "provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them." Here, FCA's counsel, Clark Hill LLP, fails to seek leave to file late papers and does not even attempt to show any cause for the late filing of its opposition. Accordingly, the Court strikes the late opposition.

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, supra, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information

sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California’s Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Attorney Client or Work Product Privilege Doctrines

If a responding party seeks to assert the Attorney Client Privilege or Work Product Doctrine Privilege, it shall provide a privilege log specifying in detail each document being withheld, the date of the document, the author, and what privilege applies. (Cal. Code of Civ. Proc. § 2031.240(c)(1).

In exercising its discretion in ruling on discovery motions, the trial court relies on the Civil Discovery Act and the legislative purpose of avoiding surprise and preventing fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in discovery practice in California has been in place for over sixty years. The California Supreme Court in the seminal case of *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376,

remain applicable today. “That is, the Legislature intended to take the “game” element out of trial preparation while yet retaining the adversary nature of the trial itself. One of the principal purposes of discovery was to do away “with the sporting theory of litigation—namely, surprise at the trial.” *Chronicle Pub. Co. v. Superior Court*, 54 Cal.2d 548, 561. See also page 572 of the same opinion wherein we adopted from *United States v. Proctor & Gamble Co.*, 356 U.S. 677, the phrase that discovery tends to “make a trial less a game of blindman’s buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.”

After considering the moving papers, including the declarations submitted to the Court, the arguments of Counsel, and after applying the relevant statutory and decisional authorities, the Court makes the following findings and orders.

Ruling

Plaintiff’s Motion to Compel further Responses to Request for Production of Documents, Set One, is **granted**. Defendant FCA US LLC is ordered to produce, within 15 calendar days of this order, further response to Plaintiff’s Request for Production of Documents, Set One Nos. 16-21 and the all documents corresponding to these responses. FCA’s objections are stricken. The Court will execute the proposed order lodged by Plaintiff with the Court on July 2, 2025.

13. 9:01 AM CASE NUMBER: C24-02486

CASE NAME: TODD SARAN VS. ANDRES BERGERO

***HEARING ON MOTION FOR DISCOVERY QUASH, OR, IN THE ALTERNATIVE, FOR A PROTECTIVE ORDER RE: DEFENDANT’S SUBPOENA FOR PRIVATE EMPLOYEE RECORDS**

FILED BY: SARAN, TODD

TENTATIVE RULING:

Summary

Plaintiff Todd Saran (“Plaintiff”) filed a Motion to Quash or, in the alternative, Motion for Protective Order re Defendants Bank of Montreal and Bank of the West’s (“Defendants”) Subpoena for Private Employment Records is **denied** as set forth herein.

Background

In this case, Plaintiff alleges causes of action for whistleblower retaliation and wrongful termination suit. Plaintiff claims that the Defendants systematically stole money from its customers, by charging a higher transaction rate than the rate quoted. Plaintiff Saran discovered this fact and persistently reported the Defendants’ misconduct. The Defendants fired Todd Saran shortly thereafter and in retaliation for his good faith whistle-blower conduct.

On May 14, 2025, Defendants served notice of a J.P. Morgan Chase subpoena on Plaintiff. Plaintiff was not informed what date Chase was served with the subpoena. Plaintiff claims that “The subpoena seeks every shred of paper whatsoever relating to Plaintiff, from January 1, 2019 to the present.” For reference, Plaintiff was not even employed by Defendants until more than two years later, in April 2022. Defendants have made no attempt to limit and tailor the subpoena to a directly relevant time

period and to capture only discoverable documents, or otherwise comply with the law.

On June 3, 2025, Plaintiff Todd Saran (“Plaintiff”) filed a Motion to Quash or, in the alternative, Motion for Protective Order re Defendants Bank of Montreal and Bank of the West’s (“Defendants”) Subpoena for Private Employment Records. The Motion was accompanied by the Declaration of Counsel Jacqueline Gill, a Separate Statement and Proposed Order. By his motion, Plaintiff seeks to quash the subpoena for all of Plaintiff’s employment records from J.P. Morgan Chase & Co. from January 1, 2019 to the present on the grounds that the subpoena is overly broad as to time and subject matter, invades Plaintiff’s constitutional right to privacy, and is unnecessarily invasive. Plaintiff seeks \$1,957 from Defendants in sanctions pursuant to California Code of Civil Procedure §§ 2017.020(b) and 2019.030(c).

In its Opposition filed on September 29, 2025, supported by the Declaration of counsel, Defendants claim that the documents sought in their subpoena to J.P. Morgan Chase & Co (“Chase”) are relevant in that they are reasonably calculated to lead to the discovery of admissible evidence pertaining to Plaintiff’s employability, reputation, damages and credibility. Defendants claim that Plaintiff lied on his March 2022 employment application to Bank of the West. Defendants assert that when Chase discovered that Plaintiff lied on his employment application, Chase terminated their employment offer to Plaintiff and banned him from future employment. Defendants also claim that Plaintiff waived any privacy protections to the extent that any existed by disclosing these facts of his dishonesty to Defendants.

Plaintiff filed a reply brief on October 6, 2025 arguing, among other things, that Plaintiff did not lie on his March 2022 employment application with Defendant. Plaintiff has never been “terminated from a position for cause,” and Defendant has presented no evidence otherwise. Plaintiff was never hired by Chase, and his inability to be hired at Chase does not constitute after acquired evidence.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, supra, 148 Cal.App.4th at 402. On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Protective Order

In *Greyhound Corp. v Superior Court* (1961) 56 C2d 355, the California Supreme Court set out the factors to be considered in balancing the rights of parties seeking discovery against those of parties

from whom information is sought and who seek protective orders. Under *Greyhound*, a court that has been asked to issue a protective order should apply the following factors to the particular case (56 C2d at 382):

- The purpose of the information sought;
- The effect disclosure would have on the parties and the trial;
- The nature of the objections urged by the party resisting disclosure; and
- The court's authority to make an alternative order that may grant partial disclosure, disclosure in another form, or disclosure only in the event that the party seeking the information undertakes certain specified burdens justified by the circumstances.

Under *Greyhound*, a court should also consider certain general legal concepts in ruling on a motion for a protective order, such as that discovery statutes should be broadly construed in favor of disclosure. 56 C2d at 377.

Under Cal. Code of Civ. Proc. §2034.250, taking into consideration "that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense," the Court may make any order:

- The demand be quashed as not timely served;
- The date of exchange be earlier or later;
- The exchange be made only on specified terms and conditions;
- Production and exchange of reports be made at a different time or place than specified in the demand;
- The parties be divided into sides on the basis of identity of interest in the issues, and the designation of employed or retained experts be made by sides so created rather than parties; and
- A party or a side reduce its list of employed or retained experts.

In applying the foregoing legal standards to Plaintiff's Motion, the Court finds that there is insufficient cause to quash the subpoena served by Defendants to Chase, and to enter a protective order as requested. The Court finds that Plaintiff waived his privacy interests in the records subpoenaed from Chase, as the records sought are directly relevant to the issues of his employability, reputation, damages and credibility. Defendants are entitled to determine whether Plaintiff made certain misrepresentations on his March 2022 employment application to Bank of the West. Defendants are entitled to discover whether Chase terminated an employment offer to Plaintiff and banned him from future employment for making representations on his application. These issues go to credibility.

Sanctions

The Court has the discretion to award reasonable expenses incurred in making or opposing a motion to quash or modify a subpoena under Cal. Code of Civ. Proc. §1987.1, including attorney fees, if it finds the motion was made or opposed in bad faith or without substantial justification, or that one or more of the requirements of the subpoena were oppressive. CCP §1987.2(a). See, e.g. *Evilsizor v Sweeney* (2014) 230 Cal.App. 4th 1304, 1310 (court acted within its discretion under CCP §1987.2 in awarding

sanctions against party who failed to withdraw motion to quash after propounding party's amendment to subpoena rendered motion unnecessary). Here, in light of the foregoing, the Court finds that Defendants' opposition to the Motion is made in good faith and with substantial justification, given the facts sought to be discovered.

After considering the papers submitted by Counsel, and applying the relevant statutory and decisional authority set forth above, the Court finds good cause to make the following findings, orders and ruling.

Ruling

1. Plaintiff's Motion to Quash or, in the alternative, Motion for Protective Order re Defendants Bank of Montreal and Bank of the West's ("Defendants") Subpoena for Private Employment Records is **denied**.
2. The Court finds that Defendant acted with substantial justification in opposing this Motion. As such, Plaintiff's request for sanctions is **denied**. Each party shall pay their own attorney's fees & costs in prosecuting and defending this motion.
3. Any record produced as response to Defendant's Subpoena to Chase is subject to the protective order entered by the Parties. The Parties are ordered to meet and confer to effectuate the intent of this order and the protective order.
4. Defendants' counsel is ordered to prepare and e-file a proposed order conforming to this tentative ruling, approved as to form by Plaintiff's counsel, no later than ten (10) days from the date of the hearing of this Motion.